

**Superior Court of the State of California
County of Orange**

**TENTATIVE RULINGS FOR DEPARTMENT C32
JUDGE LEE L. GABRIEL, Dept. C32**

Date: June 2, 2026

APPEARANCES: Department C32 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/mediarelations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") are also available at <https://www.occourts.org/mediarelations/aci.html>.

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- Civil Court Reporter Pooling; and
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These are the Court's tentative rulings. They may become an order if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If the parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling **(657-622-5232)**. The tentative ruling will then become the order of the Court upon a party or parties informing the Court that all parties submit to the Court's tentative ruling.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1.	DELEON VS. GASCO 2024-01417080	MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) Defendant Rosmar Rodriguez Gasco's motion to compel deposition is DENIED. Code of Civil Procedure section 2025.450, subdivision (a) provides: "If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." Defendant contends Plaintiff's deposition was originally set for 11/24/25 (Kim Decl., ¶ 3.) Plaintiff did not appear for the deposition and Plaintiff's counsel later represented to Defendant's counsel a prior communication was sent notifying defense counsel Plaintiff could not appear at the deposition (though no such communication had been provided as requested). (Kim Decl., ¶ 5.) Defendant requested a Certificate of Non-appearance. (Kim Decl., ¶ 5, Ex. 5.) On 11/24/25, 12/1/25 and 12/5/25, Defendant's counsel contacted Plaintiff's counsel regarding the non-appearance and coordinating a second deposition for Plaintiff but received no response. (Kim Decl. ¶¶ 6-8, Exs. 7-9.) On 12/8/25, Defendant served Plaintiff's counsel with an amended second deposition notice with a deposition date of 12/22/25. (Kim Decl., ¶ 9, Ex. 2.) On 12/19/25, Defendant provided Plaintiff's counsel with a courtesy notice of the deposition. (Kim Decl., ¶ 9, Ex. 4.) Neither Plaintiff nor his counsel appeared at the 12/22/25 deposition and Defendant again requested a Certificate of Non-appearance. (Kim Decl., ¶ 9, Ex. 6.) Code of Civil Procedure section 2025.450, subdivision (b)(2) provides: "The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance."

		While counsel for Defendant contacted Plaintiff's counsel following Plaintiff's non-appearance on 11/24/25, there is no indication Defendant's counsel did so after the non-appearance on 12/22/25 as required by section 2025.450, subdivision (b)(2). As Defendant did not comply with Code of Civil Procedure section 2025.450, subdivision (b)(2), the Court DENIES Defendant Rosmar Rodriguez Gasco's motion to compel deposition.
2.	CAO VS. GENERAL MOTORS, LLC 2024-01409133	MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) Plaintiff Derick Cao's Motion to Compel Defendant General Motors LLC to designate and produce for deposition, Defendant's Person(s) Most Qualified on all categories identified in Plaintiff's Notice of Deposition of the Person Most Qualified for Defendant and Demand to Produce Documents at Deposition is GRANTED in part. This hearing was continued due to the parties' inadequate meet and confer efforts. (ROA 156 [5/5/26 Minute Order].) The parties subsequently agreed to a deposition date of 6/10/26 and Plaintiff served an amended deposition notice. (ROA 172 [Song Decl., ¶¶ 3-4, Exs. 1-2, 4].) Since Plaintiff served an amended deposition notice for a future date, Defendant has not yet failed to comply with the operative deposition notice. The parties are ORDERED to proceed with the 6/10/26 deposition on the agreed upon categories of examination and document requests. If Defendant fails to appear or if Defendant appears and fails to answer questions and/or produce documents, Plaintiff's is to file the appropriate motion.
3.	BLATT VS. COUNTY OF ORANGE 2025-01481733	MOTION FOR PREFERENCE Plaintiff Eleanor Blatt's Motion for Trial Preference is GRANTED. Plaintiff seeks an order for trial preference pursuant to Code of Civil Procedure 36, subdivision (a). “(a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: [¶] (1) The party has a substantial interest in the action as a whole. [¶] (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.” (§ 36(a).) The statute does not require “death or incapacity.” (<i>Fox v. Superior Court</i> (2018) 21 Cal.App.5th 529, 534 (<i>Fox</i>).) “Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that that party's ‘health ... is such that a preference is necessary to prevent prejudicing [her] interest in the

litigation.’ ” (Ibid. (italics in original).) Section 36 “was enacted for the purpose of assuring that an aged or terminally ill plaintiff would be able to participate in the trial of his or her case and be able to realize redress upon the claim asserted.” (Looney v. Superior Court (1993) 16 Cal.App.4th 521, 532.) “An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party.” (Code Civ. Proc. § 36.5; Fox, supra, 21 Cal.App.5th at p. 534.)

Plaintiff has satisfied the requirements of section 36. The evidence shows Plaintiff is a 90-year-old woman who suffers from metastatic breast cancer and recurrent anemia. (Blatt Decl. ¶ 3.) Dr. Blatt has been under active treatment for metastatic cancer. (Blatt Decl. ¶ 3.) She was originally diagnosed with breast cancer in or about July 2023, underwent surgery and radiation treatments from approximately October 2023 through March 2024, and has had continuous testing and monitoring ever since. (Blatt Decl. ¶ 3.) Dr. Blatt recently suffered a severe medical crisis requiring emergency transport by paramedics to the Emergency Department. She was admitted to the hospital for four days, during which she presented with critical anemia requiring blood transfusion, extremely low blood oxygen levels necessitating supplemental oxygen, breathing/inhalation therapy treatments, intravenous antibiotics, and intravenous steroids. (Blatt Decl. ¶ 4.) Dr. Blatt’s condition remains fragile, and her advanced age combined with metastatic cancer places her at significant risk of further rapid decline. (Blatt Decl. ¶ 5.)

Dr. Eleanor Blatt is the Plaintiff in this action; therefore, the requirement that the party have a substantial interest in the action is met. (*Swaithes v. Superior Ct.* (1989) 212 Cal.App.3d 1082, 1086 (*Swaithes*) [“Elderly litigants are clearly entitled to have their case effectively tried and to the opportunity to enjoy *during their own lifetime* any benefits received.” (Italics in original.)].)

Defendants oppose the motion arguing Plaintiff’s supporting declaration from her daughter, Nicole Blatt, does not support the conclusion that Plaintiff’s health is such that a preference is necessary to prevent prejudicing Plaintiff’s interest in the litigation. For example, Defendants contend that “[a]lthough Plaintiff has treated for breast cancer, Nicole Blatt’s declaration strongly implies that Plaintiff’s treatment for breast cancer was successful and Plaintiff is currently just being monitored and tested, presumably to confirm that she remains cancer-free.” (Opp. p. 3:12-14.)

Defendants’ attempt to downplay Plaintiff’s current health condition is not well taken. First, Defendants provide no medical basis for the suggestion that once a 90-year-old person’s metastatic breast cancer treatment is successful, she is “just” fine. Second, Defendant’s reliance on Plaintiff’s ability to travel to Florida in 2024, after her

		chemotherapy treatment ended, is unpersuasive. Plaintiff's ability to travel in September 2024 does not demonstrate she has the ability to meaningfully participate at a trial scheduled to occur nearly two years later. Third, and most importantly, Nicole Blatt's declaration is uncontroverted and based on her personal knowledge of Plaintiff's current condition rather than merely on information and belief. (See Code Civ. Proc., § 36.5 [allowing attorney declaration based upon information and belief as evidence of moving party's health].) Further, "[t]he heightened clear and convincing proof standard is required for motions seeking discretionary grants of preference under [Code Civ. Proc. Section 36], subdivision (d), but not for motions seeking mandatory preference under subdivision (a)." (<i>Fox, supra</i>, 21 Cal.App.5th at 534.) Thus, Plaintiff has presented sufficient evidence of her health condition. Defendants also argue they will be prejudiced if the motion is granted. However, weighing prejudice is not part of the § 36(a) analysis, as Defendants themselves acknowledge. (See Opp. p. 4:17-18; <i>Swaithes, supra</i>, 212 Cal.App.3d at p. 1085 ["The trial court has no power to balance the differing interests of opposing litigants in applying the provision."].) The court declines Defendants' invitation to do so. Lastly, the parties' respective discussions of delay and the status of discovery is irrelevant. "Failure to complete discovery or other pre-trial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference under subdivision (a) of section 36." (<i>Swaithes, supra</i>, 212 Cal.App.3d at p. 1085.) Based on the foregoing, the motion for preference is GRANTED. Trial is set for 9/18/26 (108th day) at 9:00 a.m. in Dept. C32. Plaintiff to give notice.
4.	GUNN VS. GREEN MEADOWS HOME HEALTH CARE, INC 2023-01370855	1. MOTION FOR LEAVE TO FILE AMENDED COMPLAINT Plaintiff's Motion to Amend Complaint is GRANTED. Code of Civil Procedure section 473(a)(1) states, "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code."

“There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding.” (*Sullivan v. City of Sacramento* (1987) 190 Cal.App.3d 1070, 1081.)

Plaintiff seeks leave to amend to correct a typographical error regarding Plaintiff’s age. Plaintiff incorrectly alleged at paragraph 95 of the Complaint that Plaintiff was 82 years old at the time of Defendants’ conduct, when in fact Plaintiff was approximately 57 at the time of the events in the Complaint. Paragraph 4 of the Complaint stated Plaintiff was 59 years old. Plaintiff seeks leave to correct her age in paragraph 95.

Defendant contends it has suffered prejudice from litigating Plaintiff’s elder abuse allegations, which are inapplicable given Plaintiff’s true age. Defendant also contends Plaintiff unduly delayed in making the amendment.

Trial is set for 7/23/26.

Given that Defendant is already aware of the facts underlying the amendment, i.e. Plaintiff’s true age, Defendant has failed to demonstrate prejudice from the amendment. Therefore, the motion is granted. Plaintiff shall file and serve the proposed amended complaint within ten days.

2. MOTION TO EXCLUDE EXPERTS

Defendant’s Motion to Exclude Expert Witnesses is GRANTED.

Defendant seeks to exclude Plaintiff’s expert witnesses from testifying at trial because Plaintiff has failed to cooperate with the experts’ depositions.

Defendant’s counsel declares that Plaintiff filed expert declarations of Irina Lewis, RN, and Fadi Saba, M.D., in opposition to summary judgment. Plaintiff identified those experts as well as Lisa Contreras, RN, in her expert designation served on 5/22/25.

Defendant contacted Plaintiff’s counsel multiple times and noticed the depositions of Plaintiff’s experts, but Plaintiff’s counsel did not cooperate or present the experts for deposition. (Jackson Decl., ¶¶ 4-9.) The day before the noticed depositions on 11/5/25, Plaintiff’s counsel stated the depositions would need to be rescheduled, but Plaintiff’s counsel did not respond to Defendant’s request for alternate dates. (¶¶ 10-11.) Defendant’s counsel declares they cannot adequately prepare for trial without taking Plaintiff’s expert depositions. (¶ 16.)

The motion is unopposed as of 5/27/26.

Defendant cites *Karlsson v. Ford Motor Co.* (2006) 140 Cal.App.4th 1202, 1214, which holds:

“Misuse of the discovery process may result in the imposition of a variety of sanctions. These include payment of costs, sanctions barring the introduction of certain evidence, sanctions deeming that certain issues are determined against the offending party, and sanctions terminating an action in favor of the aggrieved party. (Code Civ. Proc., §§ 2023.020, 2023.030.) Misuse of the discovery process includes failing to respond or submit to authorized discovery, providing evasive discovery responses, disobeying a court order to provide discovery, unsuccessfully making or opposing discovery motions without substantial justification, and failing to meet and confer in good faith to resolve a discovery dispute when required by statute to do so. (Code Civ. Proc., § 2023.010, subds. (d)-(i).) The court may impose sanctions ‘[t]o the extent authorized by the chapter governing any particular discovery method or any other provision of this title....’ (Code Civ. Proc., § 2023.030.)”

Quoted portions of *Karlsson*, *supra*, 140 Cal.App.4th at 1214-1217 cited in Defendant’s brief at pp. 8-9 are not found in the cited portion of the *Karlsson* decision. The Court is unable to find the quoted language in a search of published California opinions. Defendant’s counsel shall be prepared to explain this discrepancy at the hearing including whether the mistake was the result of using generative A.I.

Nonetheless, California law is clear that it is within the Court’s discretion to exclude Plaintiff’s experts at trial based on Plaintiff’s failure to produce them for deposition. (See Code Civ. Proc. §§ 2023.010, 2023.030.) For instance, *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992 (cleaned up), holds, “The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should attempt to tailor the sanction to the harm caused by the withheld discovery. The trial court cannot impose sanctions for misuse of the discovery process as a punishment. The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. Discovery sanctions should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery. If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse.”

The motion is granted. Plaintiff has not explained her failure/refusal to allow her expert witnesses to be deposed, leaving Defendant and its witnesses unable to prepare for trial which is set to begin in less than two months. Moreover, Plaintiff has not shown lesser sanctions are appropriate because Defendant’s counsel has made numerous efforts to schedule the depositions without success and it appears

		unlikely lesser sanctions would be effective. Therefore, it would be prejudicial to Defendant to allow Plaintiff to present expert witness testimony at trial.
6.	EMERSON VS. ROBSON 2025-01503050	DEMURRER TO CROSS-COMPLAINT Plaintiff/Cross-Defendant August Emerson’s Demurrer to Defendants/Cross-Complainants Gary Robson and Ingbritt Robson’s Cross-Complaint is OVERRULED. “A demurrer to a complaint or cross-complaint may be taken to the whole complaint or cross-complaint or to any of the causes of action stated therein.” (Code Civ. Proc., § 430.50(a).) If Emerson wished to demur to specific causes of action in the Cross-Complaint he must comply with California Rules of Court 3.1320(a) which requires each ground be stated in a separate paragraph. A demurrer to a complaint as a whole “must not be sustained if the pleading states facts from which any liability results, although not for some or all of the relief sought to be obtained.” (<i>California Trust Co. v. Cohn</i> (1932) 214 Cal. 619, 628; see also <i>Warren v. Atchison, T. & S. F. Ry. Co.</i> (1971) 19 Cal.App.3d 24, 29.) Emerson’s only stated ground for demurrer is: “Defendant generally demurs to the cross-complaint complaint filed on the grounds the pleading does not state facts sufficient to constitute a cause of action pursuant to Code of Civil Procedure § 430.10(e).” Emerson provides no separate paragraphs attacking only certain causes of action. Thus, the demurrer is to the Cross-Complaint as a whole and must be overruled if any causes of action survive the demurrer. Here, Emerson failed to challenge and expressly stated the 1st and 2nd causes of action were not the subject of the demurrer. (Mot., p. 6.) Thus, the 1st and 2nd causes of action survive the demurrer. Therefore, Emerson’s demurrer to the entire Cross-Complaint must be overruled.
7.	SCHEFFLER VS. CALIFORNIA DELUXE WINDOWS INDUSTRIES, INC. 2025-01510512	DEMURRER TO ANSWER Plaintiffs Dale Scheffler and Cindy Scheffler’s Demurrer to Defendant California Deluxe Windows Industries, Inc.’s Answer is SUSTAINED in part with 20 days leave to amend and OVERRULED in part. The demurrer is sustained as to each cause of action on the ground the affirmative defenses fail to “refer to the causes of action which they are intended to answer” as required by Code of Civil Procedure, section 431.30(g). Defendant’s 4th affirmative defense seeks to bar all recovery because Plaintiffs’ negligence was active or primary while Defendant’s negligence could only be passive or secondary.

		California has adopted a pure comparative negligence system. (<i>Li v. Yellow Cab Co.</i> (1975) 13 Cal.3d 804, 874-875.) Similarly, Defendant's 10th affirmative defense seeks to impose stricter comparative fault rules. The affirmative defense seeks to bar any recovery if Plaintiffs were "negligent or otherwise at fault, wholly or in part" Thus, Plaintiffs' demurrer to the 4th and 10th affirmative defenses is sustained on this ground. Defendant's 5th affirmative defense seeks defense costs under Code Civ. Proc., § 1038. Section 1038 is limited to civil actions for indemnity and contribution. Plaintiffs have not made a claim for indemnity or contribution. Thus, Plaintiffs' demurrer to the 5th affirmative defense is sustained on this ground. Defendant's 14th affirmative defense asserts the defense of laches. However, laches is a defense for causes of action in equity and not at law. Defendant has failed identify any cause of action in the Complaint which is a claim in equity. Thus, Plaintiffs' demurrer to the 14th affirmative defense is sustained on this ground. Defendant's 15th affirmative defense claims Defendant did not receive notice of the duty to defend Plaintiffs. However, Plaintiffs have not alleged Defendant failed to defend them. Thus, Plaintiffs' demurrer to the 15th affirmative defense is sustained on this ground.
8.	GUZMAN VS. BEC ELECTRIC, INC. 2025-01525454	DEMURRER TO COMPLAINT Defendant BEC Electric, Inc. dba Service Lion's demurrer to the First through Thirteenth Causes of Action alleged in Plaintiff Ricardo Guzman's Complaint is OVERRULED. <u>First Cause of Action for Nonpayment of Wages:</u> To establish a cause of action for nonpayment of wages, the plaintiff must prove: (1) plaintiff performed work for defendant; (2) defendant owes plaintiff wages under the terms of the employment; and (3) the amount of unpaid wages. (CACI 2700.) The Complaint alleges that Plaintiff worked for Defendant as a non-exempt employee from January 2025 through September 2025. (Complaint, ¶ 12.) The Complaint further alleges Defendant regularly failed to pay Plaintiff all wages under the terms of the employment, including commissions. (Complaint, ¶ 43.) Defendants violated, or caused to be violated, the applicable IWC Wage Order(s) and California Labor Code sections 201, 202, 204, 218, 1194, 1197, and 1198 as a result of the nonpayment of wages. (Complaint, ¶ 44.) Although the Complaint does not allege the amount of unpaid wages, this information can be obtained through discovery. The allegations are sufficient at the pleading stage to withstand demurrer. Therefore, the demurrer to the first cause of action is OVERRULED.

Second Cause of Action for Nonpayment of Minimum Wages, Third Cause of Action for Nonpayment of Overtime Compensation, Fourth Cause of Action for Failure to Provide Meal Periods, Fifth Cause of Action for Failure to Provide Rest Periods and Sixth Cause of Action for Unreimbursed Business Expenses:

Defendant contends the second through sixth causes of action are inadequately pled because the Complaint fails to allege supporting facts. Specifically, Defendant contends Plaintiff does not allege a single day or workweek in which he worked uncompensated overtime, an estimate or approximation of how many overtime hours he worked, any specific dates or timeframe during which Defendant denied him meal or rest periods, facts showing Defendant impeded or prevented breaks, or what business expenses were incurred and why. Defendant cites no authority stating that Plaintiff must specifically allege the workdays or workweeks in which he worked overtime, number of overtime hours worked, or specific dates or timeframe during which Defendant denied him meal or rest periods, or what business expenses were incurred or why the expenses were necessary. This information can be obtained through discovery. The allegations in support of the second through sixth causes of action are sufficient as pled.

Therefore, the demurrer to the second through sixth causes of action is OVERRULED.

Seventh Cause of Action for Failure to Furnish Complete and Accurate Wage Statements and Eighth Cause of Action for Waiting Time Penalties for Nonpayment of Wages:

Defendants contend that the seventh and eighth causes of action are insufficiently pled and fail because they are derivative of the causes of action for failure to pay earned wages.

The seventh cause of action alleges that Defendant failed to furnish Plaintiff with complete, accurate wage statements, in violation of California Labor Code section 226, subdivision (a). The deficiencies included, but are not limited to, the failure to include the total number of hours worked by Plaintiff and the failure to include the correct net and gross wages paid to Plaintiff. (Complaint, ¶ 89.) The eighth cause of action alleges that Plaintiff is entitled to “waiting time” penalties because he was not paid all wages he was due within 24 hours of his termination. (Complaint, ¶ 94-95.) Since these causes of action are derivatives of the preceding wage-and-hour causes of action which the court finds are adequately pled, the seventh and eighth causes of action are also sufficiently pled.

Therefore, the demurrer to the seventh and eighth causes of action is OVERRULED.

Ninth cause of action for Discrimination, tenth cause of action for Harassment, eleventh cause of action for Retaliation, and twelfth

cause of action for Failure to Prevent Discrimination, Harassment, and Retaliation:

Defendant challenges the ninth through twelfth causes of action on the grounds “the Complaint fails to allege facts showing conduct that was sufficiently severe or pervasive as a matter of law.” (Demurrer, 11:27-28.)

The Complaint alleges that beginning in February 2025, Terry Lujan (a management-level employee) regularly told Plaintiff about sexual experiences with her partner, including using sex toys and other paraphernalia during sexual intercourse. (Complaint, ¶ 27.) She also intentionally and offensively touched Plaintiff without his consent on multiple occasions. (Complaint, ¶ 27.) David Hazel, another management-level employee also regularly told Plaintiff about sexual experiences with his partners. (Complaint, ¶ 28.) He repeatedly invited Plaintiff to visit a strip club while they were on-duty, which Plaintiff invariably rejected, made crude remarks about hiring sex workers, and showed Plaintiff pornographic images and videos on his cell phone and sent photographs of himself at a strip club to Plaintiff’s personal cell phone. (Complaint, ¶ 28.) These allegations are sufficient at the pleading stage to allege severe or pervasive conduct.

Therefore, the demurrer to the ninth through twelfth causes of action is OVERRULED.

Thirteenth Cause of Action for Wrongful Termination in Violation of Public Policy:

“The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff’s employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm.” (Yau v. Santa Margarita Ford, Inc. (2014) 229 Cal.App.4th 144, 154.)

Defendant contends the thirteenth cause of action fails to sufficiently allege the third element because Plaintiff has not sufficiently alleged the termination was wrongful under accepted public policy. Specifically, Defendant argues the Complaint fails to cite to specific statutes or constitutional provisions. The Complaint alleges “Defendants’ retaliatory termination of Plaintiff violated public policy, including, without limitation, provisions contained within and public policies tethered to the FEHA and Article I of the California Constitution. These laws aim to protect employees from being victimized by their employer through discrimination, harassment, retaliation, and other unlawful and unfair misconduct.” (Complaint, ¶ 138.) This is sufficient to allege a violation of public policy.

Therefore, the demurrer to the thirteenth cause of action is OVERRULED.

		Moving party to give notice.
9.	MOULTON TATE VS. HOAG MEMORIAL HOSPITAL PREBYTERIAN 2025-01515942	1. DEMURRER TO COMPLAINT Defendants Hoag Memorial Hospital Presbyterian and Sarah Love’s Demurrer to Plaintiff’s Complaint is OVERRULED. <u>First Cause of Action for Breach of Contract</u> “To state a cause of action for breach of contract, a party must plead the existence of a contract, his or her performance of the contract or excuse for nonperformance, the defendant’s breach and resulting damage.” (<i>Harris v. Rudin, Richman & Appel</i> (1999) 74 Cal.App.4th 299, 307 [citation omitted].) “If the action is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” (<i>Ibid.</i>) “In an action based on a written contract, a plaintiff may plead the legal effect of the contract rather than its precise language.” (<i>Construction Protective Services, Inc. v. TIG Specialty Ins. Co.</i> (2002) 29 Cal.4th 189, 198-199 [citation omitted].) Defendants demur on the grounds Plaintiff failed to attach a copy of the alleged contract to the complaint or state the essential terms of the contract and the specific provisions breached. Plaintiff alleges she entered into a Master Service Agreement (MSA) with Defendants on 8/22/24 and a Statement of Work Amended #2 (SOW) on 11/1/24. (Compl. ¶¶ 6, 15.) Plaintiff alleges Defendants breached the MSA by failing to provide her with written notice prior to termination. (Compl. ¶ 10.) Plaintiff further alleges Defendants breached the SOW, which provided Plaintiff a weekly compensation of \$3,400 through 12/31/25. (Compl. ¶ 15.) As such, Plaintiff has sufficiently alleged the legal effect of the contract (e.g., requirement to provide written notice of termination and a weekly compensation of \$3,400). The Court OVERRULES the demurrer to the first cause of action. <u>Second Cause of Action for Failure to Pay Overtime Wages/Misclassification under Labor Code Sections 203, 510, 1194, and 1198</u> Plaintiff alleges:

- Despite being classified as an independent contractor, Plaintiff's relationship with Defendant Hoag was that of an employee. (Compl. ¶ 7.)
- Plaintiff was paid on a salary basis but was not an exempt employee under any of the California Wage Orders and was instead misclassified as independent contractor. (Compl. ¶ 24.)
- Defendants knowingly failed to pay Plaintiff overtime compensation for the hours she worked beyond eight hours in a workday and/or 40 hours in a workweek, as required by the California Labor Code. (Compl. ¶ 25.)

While Defendants contest Plaintiff's categorization as an employee, "[t]he determination of employee or independent-contractor status is one of fact if dependent upon the resolution of disputed evidence or inferences." (*Becerra v. McClatchy Co.* (2021) 69 Cal.App.5th 913, 946-947 [citation omitted].)

A factual determination on this issue is inappropriate on a demurrer, which tests only "the legal sufficiency of a complaint." (*JPMorgan Chase Bank, N.A. v. Ward* (2019) 33 Cal.App.5th 678, 684.)

These allegations are sufficient at the pleading stage.

The Court OVERRULES the demurrer to the second cause of action.

Third Cause of Action for Failure to Provide Itemized Wage Statements (Cal. Labor Code § 226)

As discussed above, Plaintiff alleges she was an employee improperly classified as an independent contractor. (Compl. ¶¶ 7, 24.)

Plaintiff further alleges:

- By failing to pay additional compensation to Plaintiff for the time she worked beyond eight hours in a workday and/or 40 hours in a workweek, Defendants, and each of them, have violated the requirement that the total hours worked and all wages earned be included in the wage statement that must be provided to Plaintiff. (Compl. ¶ 30.)

These allegations are sufficient at the pleading stage.

The Court OVERRULES the demurrer to the third cause of action.

Fourth Cause of Action for Age-Based Discrimination (Gov. Code §§ 12940 et seq.)

As discussed above, Plaintiff alleges she was an employee improperly classified as an independent contractor. (Compl. ¶¶ 7, 24.)

“[A] prima facie case of age discrimination arises when the employee shows that: (1) at the time of the adverse employment action, the employee was 40 years of age or older; (2) some adverse employment action was taken against the employee; (3) at the time of the adverse action the employee was satisfactorily performing his or her job; and (4) the employee was replaced in his or her position by a significantly younger person.” (*Arnold v. Dignity Health* (2020) 53 Cal.App.5th 412, 424 [citation omitted].)

Plaintiff alleges:

- (1) She was 57 at the time of her termination. (Compl. ¶ 35.)
- (2) She is and always has been an exemplary employee and received consistently positive feedback on her performance from colleagues and management. (Compl. ¶ 12).
- (3) Defendants reassigned her job duties to employees who were substantially younger than Plaintiff (Compl. ¶¶ 35, 39.)

These allegations are sufficient at the pleading stage.

The Court OVERRULES the demurrer to the fourth cause of action.

Fifth Cause of Action for Failure to Prevent Discrimination (Gov. Code §§ 12940 et seq.)

“When a plaintiff seeks to recover damages based on a claim of failure to prevent discrimination or harassment she must show three essential elements: 1) plaintiff was subjected to discrimination, harassment or retaliation; 2) defendant failed to take all reasonable steps to prevent discrimination, harassment or retaliation; and 3) this failure caused plaintiff to suffer injury, damage, loss or harm.” (*Lelaind v. City and County of San Francisco* (2008) 576 F.Supp.2d 1079, 1103 [citation omitted].) There is no claim for failure to prevent harassment or discrimination when there is no liability for harassment or discrimination. (*See Trujillo v. North County Transit Dist.* (1998) 63 Cal.App.4th 280, 289.)

As discussed above, the complaint adequately pleads facts to support the age discrimination claims at the pleading stage. The complaint further alleges Defendants failed to prevent the discrimination and Plaintiff was harmed. (Compl. ¶ 43.) These allegations are sufficient at the pleading stage.

The Court OVERRULES the demurrer to the fifth cause of action.

Sixth Cause of Action for Defamation

Defendants allege Plaintiff’s claim for defamation fails as it is subject to the common interest privilege.

“[B]ecause an employer and its employees have a common interest in protecting the workplace from abuse, an employer’s statements to employees regarding the reasons for termination of another employee generally are privileged.” (*King v. United States Parcel Service, Inc.* (2007) 152 Cal.App.4th 426, 440 [citations omitted].)

“The general rule is that a privilege must be pleaded as an affirmative defense. . . . But where the existence of a privilege is revealed on the face of the complaint, it may be asserted in a demurrer.” (*Tschirky v. Superior Court* (1981) 124 Cal.App.3d 534, 538.)

Plaintiff alleges Defendant Love “made numerous false and defamatory statements about Plaintiff to her former colleagues, including that Plaintiff ‘has mental health issues,’ that she would ‘probably key my car,’ and that she ‘switched her meds lately.’” (Compl. ¶ 49.)

The Court does not find the existence of the common interest privilege is revealed on the face of the complaint based on the allegedly defamatory statements alleged by Plaintiff.

The Court OVERRULES the demurrer to the sixth cause of action.

Seventh Cause of Action for Wrongful Termination in Violation of Public Policy

“The elements of a cause of action for wrongful discharge in violation of public policy are “(1) an employer-employee relationship, (2) the employer terminated the plaintiff’s employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm.” (*McDoniel v. Kavry Management, LLC* (2025) 114 Cal.App.5th 949, 962-963 [citation omitted].)

Plaintiff alleges, “[t]he actual reason for Plaintiff’s termination was based upon, among other things, the fact that Plaintiff was being discriminated against based on her age.” (Compl. ¶ 66.) Plaintiff further alleges she was harmed as a result of the termination. (Compl. ¶¶ 69-71.)

As Plaintiff sufficiently alleges a cause of action for age discrimination as discussed above, Plaintiff’s cause of action for wrongful termination is also sufficiently pled.

The Court OVERRULES the demurrer to the seventh cause of action.

Eighth Cause of Action for Unfair Competition (Business & Professions Code §§ 17200 et seq).

The Unfair Competition Law (UCL), Business and Professions

Code section 17200 et seq., prohibits unfair competition, including unlawful, unfair or fraudulent business acts. (*Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co.* (1999) 20 Cal.4th 163, 180.)

“By proscribing ‘any unlawful’ business practice, ‘section 17200 ‘borrows’ violations of other laws and treats them as unlawful practices’ that the unfair competition law makes independently actionable.” (*Ibid.* [citations omitted].) Virtually any law or regulation can serve as predicate for a section 17200 “unlawful” violation. (*Paulus v. Bob Lynch Ford, Inc.* (2006) 139 Cal.App.4th 659, 681 [citation omitted].)

Defendants contend Plaintiff’s complaint “alleges nothing concerning Hoag engaging in unfair competition and does not allege that members of the public are likely to be deceived by any of Hoag’s practices.” (Dem. at 18:7-8.)

As discussed above, Plaintiff alleges she was an employee improperly classified as an independent contractor. (Compl. ¶¶ 7, 24.)

“The FEHA makes it an unlawful employment practice for an employer to engage in age discrimination. (Gov. Code, § 12940, subd. (a).) It follows that injunctive relief under the UCL is an appropriate remedy where a business has engaged in an unlawful practice of discriminating against older workers.” (*Herr v. Nestle U.S.A., Inc.* (2003) 109 Cal.App.4th 779, 789.)

“[A]n employer that practices age discrimination may have an unfair competitive edge over employers that comply with the FEHA. Therefore, an employer which engages in age discrimination in violation of the FEHA is subject to a prohibitory injunction under the UCL.” (*Id.* at p. 790.)

Plaintiff alleges Defendants “engaged in unlawful, unfair, and fraudulent business practices as described herein, including but not limited to, engaging in acts of discrimination, defamation, and wrongful termination in violation of public policy” (Compl. ¶ 49.)

As Plaintiff sufficiently alleges a cause of action for age discrimination as discussed above, Plaintiff’s cause of action for unfair competition is also sufficiently pled.

The Court **OVERRULES** the demurrer to the eighth cause of action.

2. MOTION TO STRIKE PORTIONS OF COMPLAINT

Defendants Hoag Memorial Hospital Presbyterian and Sarah Love’s Motion to Strike Portions of Plaintiff’s Complaint is **GRANTED** with 20 days leave to amend.

Defendants move to strike portions of Plaintiff's complaint on the ground Plaintiff failed to plead facts sufficient for an award of punitive damages.

"To support punitive damages, the complaint asserting one of those causes of action must allege ultimate facts of the defendant's oppression, fraud, or malice." (*Spinks v. Equity Resident Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1055 [citation omitted].)

Civil Code section 3294 defines "malice" as conduct "intended by the defendant to cause injury to plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard for the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) "Oppression" is defined as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code, § 3294, subd. (c)(2).) "Fraud" is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294, subd. (c)(3).)

Additionally, section 3294, subdivision (b) provides: "An employer shall not be liable for damages . . . based upon acts of an employee of the employer, unless the employer . . . authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code, § 3294, subd. (b).)

Plaintiff alleges Defendants' conduct in "terminating Plaintiff because of her age, reassigning her duties to substantially younger employees, and providing her with a false reason for her termination to cover-up the true discriminatory motives was willful and malicious and in conscious disregard of Plaintiff's rights." (Compl. ¶ 39.)

As such, Plaintiff relies primarily on the underlying facts associated with her age discrimination cause of action which the Court finds do not rise to the level of malice, oppression or fraud necessary under Civil Code section 3294 to state a claim for punitive damages. Nor does the Court find Defendant Love's comments regarding Plaintiff including that she "has mental health issues," would "probably key [Love's] car," and "switched her meds lately" (Compl. ¶ 49) or Chief Marketing Officer, Ryan Chen's comments that younger supervisors were "so young" and "so great" (Compl. ¶ 10) satisfy the requisite showing.

		Accordingly, the Court GRANTS Defendants Hoag Memorial Hospital Presbyterian and Sarah Love’s Motion to Strike Portions of Plaintiff’s Complaint with 20 days leave to amend.
11.	STRUMPFER VS. KAWASAKI MOTORS CORP., U.S.A. 2023-01357407	MOTION FOR SUMMARY JUDGMENT Defendant’s Motion for Summary Judgment is DENIED. <u>Objections to Evidence:</u> Both parties improperly object to facts rather than individual items of evidence. (See Cal. Rules of Court, Rule 3.1354.) Nonetheless, the Court will attempt to address the merits of the objections to the extent they are reasonably limited to a particular factual statement or item of evidence. Plaintiff’s objections to evidence (ROA 163) are sustained as to objections #1-4, (hearsay statements in police report and State Department of Parks and Recreation findings) and overruled as to the remaining objections. Defendant’s objections to evidence (ROA 177) are overruled. <u>Legal Standard:</u> At summary judgment, “A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the Plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Code. Civ. Proc. § 437c(p)(2).) “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that

raise a triable issue as to any material fact.” (Code Civ. Proc. § 437c(c).)

Summary of Motion:

In the complaint filed on 10/26/23, Plaintiff alleges injuries arising from the 10/21/22 explosion on Lake Havasu of a jet ski manufactured by Defendant. (¶ 13.)

On 3/10/26, the Court granted Defendant’s motion to determine that maritime law applies and allowed Plaintiff to file an amended opposition brief addressing maritime law.

Defendant moves for summary judgment or adjudication as to Plaintiff’s claims for (1) strict product liability and (2) negligence. Defendant contends the incident was caused by Plaintiff’s failure to inspect or maintain the PWC and there is no evidence of a design/manufacturing defect, failure to warn, or negligence.

Summary of Facts:

The subject jet ski, or personal watercraft (“PWC”) was a 2003 or 2004 model which Plaintiff received from a friend for free in approximately 2022. (Undisputed Material Facts [UMFs] 1-6.) Plaintiff and the friend, Michelle Collins, disagree as to who technically retained ownership of the PWC after Plaintiff took possession of it – Collins asserts she intended to transfer ownership to Plaintiff which Plaintiff denies. (UMFs 2, 7-8.) Collins testified the PWC had been sitting in her garage unused since 2015. (UMFs 9-10.)

Plaintiff considers himself a very experienced PWC operator who purchased his first PWC in 1989. (UMFs 12-13.) He did not receive or try to obtain an owner’s manual for the subject PWC but testified he had previously read owners manuals for other Kawasaki PWCs. (UMFs 16-17.) He performed repairs including changing the spark plugs, oil and oil filter, and battery and performed a visual inspection for potential fuel leaks. (UMFs 18-19.) Although he performed a visual inspection, he did not individually disassemble each fuel line or replace the fuel filter. (UMFs 20-22.)

On 10/21/22, Plaintiff filled up the PWCs with fuel and made sure the PWC would start. (UMFs 23-25.) After arriving at Lake Havasu, Plaintiff rode the subject PWC while his girlfriend followed riding a different PWC. (UMFs 26-28.) Plaintiff’s girlfriend smelled gasoline while riding her PWC behind Plaintiff but did not tell Plaintiff about the smell. (UMFs 28-30.) Plaintiff and his girlfriend turned off the PWCs and dismounted to swim near the marina while the PWCs floated in the lake. (UMF 31.) Plaintiff re-mounted the PWC and started the engine and the PWC “exploded.” (UMF 32.)

Defendant asserts it provided warnings for the PWC including the owner's manual and on-product warnings which warned of the risk of explosion due to lack of ventilation including a warning to ventilate the engine compartment "after transporting or refueling and before starting the engine." (UMFs 33-36.) A label on the PWC at the front of the craft stated, "WARNING A concentration of gasoline fumes in the engine compartment can cause a fire or explosion. Open the engine compartment for ventilation before starting the engine for each ride and after transporting or refueling." (UMFS 38-39.)

Defendant also asserts Plaintiff was aware of the risk of explosion for failure to ventilate, based on years of experience with marine vehicles and having read a similar warning on his other PWC, a Yamaha. (UMFs 41-45.)

Defendant asserts Plaintiff failed to adequately ventilate the engine compartment just prior to the explosion, although Plaintiff did ventilate the engine when he refueled and tested the engine before entering the water. (UMFs 46-47.)

Plaintiff had the subject PWC, which he asserts was largely destroyed in the explosion, taken to the dump in October 2022. (UMFs 48-51.) Defendant asserts this deprived it of the ability to inspect the vehicle.

Plaintiff filed this lawsuit on 10/16/23.

Application of Restatement (Third) of Torts:

On 3/10/26, this Court determined that federal maritime law is applicable in this case.

Defendant asserts the Restatement (Third) of Torts ("Third Restatement") applies to Plaintiff's product liability claims in light of the Court's determination that federal maritime law applies. Defendant cites the Ninth Circuit Court of Appeals' opinion in *Oswalt v. Resolute Industries, Inc.* (9th Cir. 2011) 642 F.3d 856, 860, which holds:

"Resolute's products liability claims against Webasto are controlled by the federal common law of maritime torts, which is informed by the American Law Institute's Restatement of Torts. See *Pan-Alaska Fisheries, Inc. v. Marine Constr. & Design Co.*, 565 F.2d 1129, 1134 (9th Cir.1977). We have previously adopted Section 402-A of the Restatement (Second) of Torts as the law of products liability in admiralty cases. See *id.* at 1134-35; see also *Saratoga Fishing Co. v. Marco Seattle Inc.*, 69 F.3d 1432, 1437-38 (9th Cir.1995), *rev'd* on other grounds sub nom. *Saratoga Fishing Co. v. J.M. Martinac & Co.*, 520 U.S. 875, 117 S.Ct. 1783, 138 L.Ed.2d 76 (1997). In *Saratoga Fishing*, we also relied on a preliminary version of the Products Liability Section of the Restatement (Third) of Torts,

although we declined at that time to adopt that early draft as controlling. See *Saratoga Fishing*, 69 F.3d at 1441 (citing Restatement (Third) of Torts: Products Liability § 2, Tentative Draft No. 1, 1994). Since the Restatement (Third) was finalized in 1998, however, we and other circuits have relied on it.”

In opposition, Plaintiff contends the Ninth Circuit and California Court of Appeal have applied the Second Restatement rather than the Third Restatement in admiralty cases, citing *Pan-Alaska Fisheries, Inc. v. Marine Const. & Design Co.* (9th Cir. 1977) 565 F.2d 1129 and *Colombo v. BRP US Inc.* (2014) 230 Cal.App.4th 1442. (Opp. at p. 12.) Defendant responds the “consumer expectation” test set out in the Second Restatement is no longer applicable because *Pan-Alaska Fisheries* was decided prior to the publication of the Third Restatement in 1998. (Reply, pp. 2-3.)

The Court will follow the more recent Ninth Circuit decision in *Oswalt v. Resolute Industries, Inc.* (9th Cir. 2011) 642 F.3d 856, 860 which applies products liability principles from the Third Restatement to tort claims under federal maritime law. (See also *McIndoe v. Huntington Ingalls Inc.* (9th Cir. 2016) 817 F.3d 1170, 1173 [“When analyzing products-liability claims under maritime law, we look to the Restatement of Torts (the ‘Restatement’)—particularly the most recent Third Restatement—for guidance.”])

There is a Triable Issue Regarding Strict Product Liability for Failure to Warn:

The Third Restatement summarizes the categories of product defect liability in section 2 as follows:

“A product is defective when, at the time of sale or distribution, it contains a manufacturing defect, is defective in design, or is defective because of inadequate instructions or warnings. A product:

(a) contains a manufacturing defect when the product departs from its intended design even though all possible care was exercised in the preparation and marketing of the product;

(b) is defective in design when the foreseeable risks of harm posed by the product could have been reduced or avoided by the adoption of a reasonable alternative design by the seller or other distributor, or a predecessor in the commercial chain of distribution, and the omission of the alternative design renders the product not reasonably safe;

(c) is defective because of inadequate instructions or warnings when the foreseeable risks of harm posed by the product could have been reduced or avoided by the provision of reasonable instructions or warnings by the seller or other distributor, or a predecessor in the commercial chain of distribution, and the omission of the instructions or warnings renders the product not reasonably safe.”

Plaintiff asserts the warnings provided by Defendant addressed the wrong hazard, i.e. gasoline fumes from failure to ventilate after

refueling or transport rather than “active, pressurized fuel leakage from a defective fuel line, fitting, or pump, which generates a continuous source of combustible vapor during engine operation and which ventilation will not remedy.” (Opp. at p. 17.)

Defendant responds that the on-product warning included the following:

“Under a day-glo orange banner with the triangle safety alert symbol, the label states: “WARNING A concentration of gasoline fumes in the engine compartment can cause a fire or explosion. Open the engine compartment for ventilation before starting the engine for each ride and after transporting or refueling.” (UMF 39.) Plaintiff does not dispute the on-product label contained this text, but contends the label “addresses only stale-vapor accumulation” “after refueling or transport.” (Response to UMF 39.) Plaintiff asserts the incident was likely caused by “active fuel system leakage, not stale-fume accumulation.” (Id.)

It is undisputed that Plaintiff was aware of the warning and that the warning instructed users to ventilate the engine compartment after each ride. Plaintiff does not present expert witness testimony supporting his assertion that the incident was caused by active fuel system leakage rather than stale-fume accumulation, or showing that ventilation would not have prevented an explosion due to active fuel system leakage. Moreover, the plain language of the on-product warning instructed users to ventilate the engine compartment “for each ride and after transporting or refueling.” (Emphasis added.)

However, Defendant’s arguments rest on the premise that the warning was applicable to the cause of Plaintiff’s injuries in this case, i.e. that the explosion could have been prevented by adequately ventilating the engine compartment as instructed by the on-product label. This conclusion is based on the Vessel Accident Report prepared by the San Bernardino County Sheriff Investigator. (Defendant’s Ex. I.)

The Sheriff’s report states in part, “On Friday, October 21, 2022 at approximately 1605 hours, deputies responded to a PWC explosion on the Colorado River, in front of Havasu Rivera State Park. Through investigation the ski was not properly vented prior to restart up and an explosion occurred launching the sole operator. The operator sustained injuries to both is feet and lower legs where he was transported to Havasu Regional Medical Center. [¶] CAUSE: Improper ventilation was determined to be the cause of the explosion.”

The report itself is inadmissible hearsay and the conclusions in the report also appear to be based on a second layer of hearsay. (Evid. Code § 1200 et seq.; see *People v. Dixon* (2026) 118 Cal.App.5th 116, 136.)

Defendant asserts the report is admissible under the public employee records exception. (ROA 169, Response to Objections.) Evidence Code section 1280 states, “Evidence of a writing made as a record of an act, condition, or event is not made inadmissible by the hearsay rule when offered in any civil or criminal proceeding to prove the act, condition, or event if all of the following applies:

(a) The writing was made by and within the scope of duty of a public employee.

(b) The writing was made at or near the time of the act, condition, or event.

(c) The sources of information and method and time of preparation were such as to indicate its trustworthiness.”

Defendant does not present independent testimony of the Sheriff Investigator or other expert testimony demonstrating the likely cause of the explosion was fuel vapor accumulation that could have been prevented by ventilating the engine compartment.

At this stage, Defendant has not presented sufficient evidence regarding the foundation for the opinions contained in the Sheriff’s report or demonstrated the methods of its preparation are sufficient to establish the public employee records exception. Therefore, Defendant has not met its initial burden to demonstrate the warning label on the PWC was applicable to the cause of the explosion and following the instructions would likely have prevented the incident and the motion is denied as to Plaintiff’s failure to warn claim.

Because Defendant did not move in the alternative for summary adjudication of issues, and moved only for summary judgment as to Plaintiff’s entire complaint, the motion is denied in its entirety. (See Code Civ. Proc. § 437c(f).) “It is elemental that a notice of motion must state in writing the ‘grounds upon which it will be made.’ (Code Civ. Proc., § 1010; Cal. Rules of Court, rule 311(a); *Silva v. Holland* (1888) 74 Cal. 530, 532, 16 P. 385.) Only the grounds specified in the notice of motion may be considered by the trial court. This rule has been held to be especially true in the case of motions for summary adjudication of issues.” (*Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542, 1545 [cleaned up].) “[I]t is improper to grant summary adjudication absent a motion therefor. Therefore, because Wilton did not move in the alternative for summary adjudication of specified issues, we will not address whether Wilton may have prevailed on some issues in this case.” (*Hawkins v. Wilton* (2006) 144 Cal.App.4th 936, 949 [cleaned up].)

Therefore, the Court need not evaluate the other claims in Plaintiff’s complaint because Defendant’s motion does not alternatively request summary adjudication of those issues.